



House of Representatives

General Assembly

File No. 395

February Session, 2026

Substitute House Bill No. 5495

House of Representatives, April 2, 2026

The Committee on Labor and Public Employees reported through REP. SANCHEZ, E. of the 24th Dist., Chairperson of the Committee on the part of the House, that the substitute bill ought to pass.

***AN ACT CONCERNING REVIEW OF DECISIONS BY THE
CONNECTICUT STATE EMPLOYEES RETIREMENT COMMISSION BY
THE SUPERIOR COURT AND AUTHORIZING APPEALS OF
DECISIONS OF THE MEDICAL EXAMINING BOARD.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (d) of section 5-169 of the general statutes is
2 repealed and the following is substituted in lieu thereof (*Effective October*
3 *1, 2026*):

4 (d) [No reconsideration of] (1) Prior to making a decision concerning
5 a member's eligibility for a disability retirement allowance or the
6 discontinuance of such allowance, [shall be made by the board unless a
7 member, upon application to the board for a redetermination, discloses
8 additional facts concerning his condition at the date of termination of
9 employment] the board shall hold a hearing. After the hearing, the
10 board shall send the member a written copy of the board's decision
11 containing a statement of the reasons for such decision. Any member

12 aggrieved by the decision of the board may appeal the decision to the
13 Superior Court in accordance with the provisions of chapter 54.

14 (2) Nothing in this subsection shall take effect until the State
15 Employees' Bargaining Agent Coalition has provided its written
16 consent to the clerks of both houses of the General Assembly to
17 incorporate the terms of this subsection into its collective bargaining
18 agreement.

19 Sec. 2. Subsection (g) of section 5-192p of the general statutes is
20 repealed and the following is substituted in lieu thereof (*Effective October*
21 *1, 2026*):

22 (g) [No reconsideration of] (1) Prior to making a decision concerning
23 a member's eligibility for a disability retirement allowance or the prior
24 discontinuance of such allowance, [shall be made by the board unless a
25 member, upon application to the board for a redetermination, discloses
26 additional facts concerning his condition at the date of termination of
27 employment or at the time of discontinuance as appropriate] the board
28 shall hold a hearing. After the hearing, the board shall send the member
29 a written copy of the board's decision containing a statement of the
30 reasons for such decision. Any member aggrieved by the decision of the
31 board may appeal the decision to the Superior Court in accordance with
32 the provisions of chapter 54.

33 (2) Nothing in this subsection shall take effect until the State
34 Employees' Bargaining Agent Coalition has provided its written
35 consent to the clerks of both houses of the General Assembly to
36 incorporate the terms of this subsection into its collective bargaining
37 agreement.

38 Sec. 3. Section 4-183 of the 2026 supplement to the general statutes is
39 repealed and the following is substituted in lieu thereof (*Effective October*
40 *1, 2026*):

41 (a) A person who has exhausted all administrative remedies available
42 within the agency and who is aggrieved by a final decision may appeal

43 to the Superior Court as provided in this section. The filing of a petition
44 for reconsideration is not a prerequisite to the filing of such an appeal.

45 (b) A person may appeal a preliminary, procedural or intermediate
46 agency action or ruling to the Superior Court if (1) it appears likely that
47 the person will otherwise qualify under this chapter to appeal from the
48 final agency action or ruling and (2) postponement of the appeal would
49 result in an inadequate remedy.

50 (c) (1) Within forty-five days after mailing of the final decision under
51 section 4-180 or, if there is no mailing, within forty-five days after
52 personal delivery of the final decision under said section, or (2) within
53 forty-five days after the agency denies a petition for reconsideration of
54 the final decision pursuant to subdivision (1) of subsection (a) of section
55 4-181a, or (3) within forty-five days after mailing of the final decision
56 made after reconsideration pursuant to subdivisions (3) and (4) of
57 subsection (a) of section 4-181a or, if there is no mailing, within forty-
58 five days after personal delivery of the final decision made after
59 reconsideration pursuant to said subdivisions, or (4) within forty-five
60 days after the expiration of the ninety-day period required under
61 subdivision (3) of subsection (a) of section 4-181a if the agency decides
62 to reconsider the final decision and fails to render a decision made after
63 reconsideration within such period, whichever is applicable and is later,
64 a person appealing as provided in this section shall serve a copy of the
65 appeal on the agency that rendered the final decision at its office or at
66 the office of the Attorney General in Hartford and file the appeal with
67 the clerk of the superior court for the judicial district of New Britain or
68 for the judicial district wherein the person appealing resides or, if that
69 person is not a resident of this state, with the clerk of the court for the
70 judicial district of New Britain. Within that time, the person appealing
71 shall also serve a copy of the appeal on each party listed in the final
72 decision at the address shown in the decision, provided failure to make
73 such service within forty-five days on parties other than the agency that
74 rendered the final decision shall not deprive the court of jurisdiction
75 over the appeal. Service of the appeal shall be made by a state marshal
76 making service in the same manner as complaints are served in ordinary

77 civil actions.

78 (d) The person appealing, not later than fifteen days after filing the
79 appeal, shall file or cause to be filed with the clerk of the court an
80 affidavit, or the state marshal's return, stating the date and manner in
81 which a copy of the appeal was served on each party and on the agency
82 that rendered the final decision, and, if service was not made on a party,
83 the reason for failure to make service. If the failure to make service
84 causes prejudice to any party to the appeal or to the agency, the court,
85 after hearing, may dismiss the appeal.

86 (e) If service has not been made on a party, the court, on motion, shall
87 make such orders of notice of the appeal as are reasonably calculated to
88 notify each party not yet served.

89 (f) The filing of an appeal shall not, of itself, stay enforcement of an
90 agency decision. An application for a stay may be made to the agency,
91 to the court or to both. Filing of an application with the agency shall not
92 preclude action by the court. A stay, if granted, shall be on appropriate
93 terms.

94 (g) Within thirty days after the service of the appeal, or within such
95 further time as may be allowed by the court, the agency shall transcribe
96 any portion of the record that has not been transcribed and transmit to
97 the reviewing court the original or a certified copy of the entire record
98 of the proceeding appealed from, which shall include the agency's
99 findings of fact and conclusions of law, separately stated. By stipulation
100 of all parties to such appeal proceedings, the record may be shortened.
101 A party unreasonably refusing to stipulate to limit the record may be
102 taxed by the court for the additional costs. The court may require or
103 permit subsequent corrections or additions to the record.

104 (h) If, before the date set for hearing on the merits of an appeal,
105 application is made to the court for leave to present additional evidence,
106 and it is shown to the satisfaction of the court that the additional
107 evidence is material and that there were good reasons for failure to
108 present it in the proceeding before the agency, the court may order that

109 the additional evidence be taken before the agency upon conditions
110 determined by the court. The agency may modify its findings and
111 decision by reason of the additional evidence and shall file that evidence
112 and any modifications, new findings, or decisions with the reviewing
113 court.

114 (i) The appeal shall be conducted by the court without a jury and shall
115 be confined to the record. If alleged irregularities in procedure before
116 the agency are not shown in the record or if facts necessary to establish
117 aggrievement are not shown in the record, proof limited thereto may be
118 taken in the court. The court, upon request, shall hear oral argument and
119 receive written briefs.

120 (j) [The] Except as otherwise provided in subsection (n) of this section,
121 the court shall not substitute its judgment for that of the agency as to the
122 weight of the evidence on questions of fact. The court shall affirm the
123 decision of the agency unless the court finds that substantial rights of
124 the person appealing have been prejudiced because the administrative
125 findings, inferences, conclusions, or decisions are: (1) In violation of
126 constitutional or statutory provisions; (2) in excess of the statutory
127 authority of the agency; (3) made upon unlawful procedure; (4) affected
128 by other error of law; (5) clearly erroneous in view of the reliable,
129 probative, and substantial evidence on the whole record; or (6) arbitrary
130 or capricious or characterized by abuse of discretion or clearly
131 unwarranted exercise of discretion. If the court finds such prejudice, it
132 shall sustain the appeal and, if appropriate, may render a judgment
133 under subsection (k) of this section or remand the case for further
134 proceedings. For purposes of this section, a remand is a final judgment.

135 (k) If a particular agency action is required by law, the court, on
136 sustaining the appeal, may render a judgment that modifies the agency
137 decision, orders the particular agency action, or orders the agency to
138 take such action as may be necessary to effect the particular action.

139 (l) In all appeals taken under this section, costs may be taxed in favor
140 of the prevailing party in the same manner, and to the same extent, that
141 costs are allowed in judgments rendered by the Superior Court. No costs

142 shall be taxed against the state, except as provided in section 4-184a.

143 (m) In any case in which a person appealing claims that he cannot
144 pay the costs of an appeal under this section, he shall, within the time
145 permitted for filing the appeal, file with the clerk of the court to which
146 the appeal is to be taken an application for waiver of payment of such
147 fees, costs and necessary expenses, including the requirements of bond,
148 if any. The application shall conform to the requirements prescribed by
149 rule of the judges of the Superior Court. After such hearing as the court
150 determines is necessary, the court shall render its judgment on the
151 application, which judgment shall contain a statement of the facts the
152 court has found, with its conclusions thereon. The filing of the
153 application for the waiver shall toll the time limits for the filing of an
154 appeal until such time as a judgment on such application is rendered.

155 (n) Notwithstanding the provisions of subsection (j) of this section,
156 any review of a decision of the Connecticut State Employees Retirement
157 Commission shall be de novo.

This act shall take effect as follows and shall amend the following sections:		
Section 1	October 1, 2026	5-169(d)
Sec. 2	October 1, 2026	5-192p(g)
Sec. 3	October 1, 2026	4-183

LAB *Joint Favorable Subst.*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact: None

Municipal Impact: None

Explanation

The bill allows parties to appeal decisions made by the Connecticut State Employees Retirement Commission in Superior Court subject to approval by the State Employees' Bargaining Agent Coalition, resulting in no fiscal impact to the state. The court system disposes of over 250,000 cases annually and the number of cases is not anticipated to be great enough to need additional resources.

The bill additionally requires the medical examining board to hold hearings and send written copies of their decisions, resulting in no fiscal impact to the state as the bill conforms statute to current practice.

OLR Bill Analysis**sHB 5495*****AN ACT CONCERNING REVIEW OF DECISIONS BY THE CONNECTICUT STATE EMPLOYEES RETIREMENT COMMISSION BY THE SUPERIOR COURT AND AUTHORIZING APPEALS OF DECISIONS OF THE MEDICAL EXAMINING BOARD.*****SUMMARY**

This bill requires the State Employee Retirement System's (SERS) medical examining board, before deciding on a SERS member's eligibility for a disability pension, or discontinuing one, to hold a hearing and send the member a written copy of its decision and reasoning. The bill allows a member aggrieved by the board's decision to appeal to the Superior Court under the state's Uniform Administrative Procedure Act (UAPA). However, it also specifies that these changes do not take effect until the State Employees' Bargaining Agent Coalition (SEBAC) gives its written consent to incorporate these terms into its collective bargaining agreement.

Current law prohibits the board from reconsidering disability retirement decisions unless applicants disclose additional facts about their condition when they ended their employment. Under the UAPA, these decisions cannot be appealed to court because they are not "final decisions."

Separately, the bill also requires the courts, when reviewing any State Employees Retirement Commission decision, to do so "de novo" (generally, to treat it as if hearing it for the first time, rather than limiting the review to certain issues such as errors of law, or abuse of discretion in the original decision, as otherwise required by the UAPA).

EFFECTIVE DATE: October 1, 2026

BACKGROUND***Appeals Under the UAPA***

The UAPA generally allows someone who has exhausted all administrative remedies and is aggrieved by a final decision to appeal to Superior Court (CGS § 4-183(a)). Under the law, a “final decision” is an agency’s (1) determination in a contested case, (2) declaratory ruling, or (3) decision made after reconsideration. It does not include an agency’s preliminary or intermediate ruling or order, or ruling granting or denying a petition for reconsideration (CGS § 4-166).

COMMITTEE ACTION

Labor and Public Employees Committee

Joint Favorable Substitute

Yea 13 Nay 0 (03/19/2026)